

25SMCV03450 25SMCV03450

County: los-angeles

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Case Number: 25SMCV03450 Hearing Date: July 17, 2026 Dept: P

Tentative

Ruling

Barbara

Burrell, et al. v. Essex Management, et al., Case No. 25SMCV03450

Plaintiff's

Motion for Sanctions

Hearing

Date: July 17, 2026

Background

Plaintiffs

Barbara Burrell and Sky's Gourmet Marketplace sue Defendants Essex Management Corporation, Essex Marina City Club, Marina City Club Condominium Association, Property Management Professionals, the County of Los Angeles, and Does 1-350 for fourteen causes of action arising out of their lease to the premises at 4344 Promenade Way, Unit 202 and Suite 001, Marina Del Rey, California. Plaintiffs initially also made claims against the Essex Defendants' attorneys, Kimball, Tirey, & St. John ("KTS").

On August

29, 2025, Defendant KTS filed an Anti-SLAPP motion. On November 10, 2025, the Court granted KTS's Anti-SLAPP on November 10, 2025.

Essex

Management, Essex Marina City Club, and Essex MCC ("The Essex Defendants") filed a demurrer on August 26, 2025. Marina City Club Condominium Association and Property Management Professionals filed a notice of Joinder to the Essex Demurrer on January 12, 2026. Essex replied on January 29, 2026. Plaintiffs filed opposition on January 23, 2026.

The County of Los Angeles filed a demurrer on August 29, 2025. Plaintiffs filed opposition on January 23, 2026. The County replied on January 29, 2026.

Plaintiffs filed a Motion for Leave to Amend Complaint on January 9, 2026. Essex filed opposition on January 16, 2026. KTS filed opposition on January 22, 2026. Plaintiffs replied on January 28.

On February 2, 2026, the Court continued the hearing on the above motions from February 5, 2026 to February 11, 2026.

On February 11, the Court heard argument on all three motions and took them under submission. On March 13 the Court ruled on the demurrer, sustaining Plaintiffs' demurrer to the Los Angeles Rent Stabilization Ordinance without leave to amend.

On March 17, Plaintiffs filed this Motion for Reconsideration because the Court's March 13, 2026, ruling relied on a superseded version of the Los Angeles County Rent Stabilization Ordinance. On May 13, 2026, the Court granted Plaintiffs' Motion for Reconsideration.

On April 15, 2026, Plaintiffs filed a Motion for Sanctions against the Essex Defendants, based on their failure to stipulate to correct the demurrer error. On July 2, 2026, the Essex Defendants filed opposition. On July 10, 2026, Plaintiffs replied.

Arguments

Plaintiffs

move for sanctions against the Essex Defendants for presenting a superseded version of the Los Angeles County Rent Stabilization Ordinance in their demurrer to Plaintiff's complaint, filed on August 26, 2025. (Motion for Sanctions, p. 2.) Plaintiffs argue that the Essex Defendants' argument on that demurrer was not supported by existing law, and that a reasonable pre-filing inquiry would have shown that the ordinance was outdated. (Id. at pp. 4-5.) Plaintiffs argue that even if the Essex Defendants' error was unintentional, they had an obligation to correct the error that they violated when they refused to stipulate to amend the Court's demurrer ruling. (Id. at p. 6.) Plaintiffs request attorneys' fees as a sanction.

In

Opposition, the Essex Defendants argue that they did not file the demurrer for an improper purpose, so Plaintiffs cannot prevail on their motion for sanctions. (Opposition, p. 3.) The Essex Defendants argue that Plaintiffs mis-represent the argument their former counsel made on the demurrer and falsely accuse the Essex Defendants' counsel of impropriety for failing to stipulate to an amendment, when the proposed amendment was unreasonable. (Id. at p. 4.)

In reply,

Plaintiffs argue that there is no requirement that the offending document be brought with an improper purpose, and argue that the test is objective unreasonableness. (Reply, p. 3.) Plaintiffs argue that presenting the demurrer with superseded law was objectively unreasonable. (Id. at p. 4.) Plaintiffs argue that the Essex Defendants fail to provide evidence supporting their assertion that the error was mistake. (Id. at pp. 6-7.)

Governing

Law

CCP section

128.7(b) provides that by signing and filing a pleading, an attorney "is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following conditions are met: (1) [i]t is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation[;] (2) [t]he claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal

of existing law or the establishment of new law[;] (3) [t]he allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery[;] (4) [t]he denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief." (Code Civ. Proc., § 128.7(b).) CCP section 128.7 authorizes the court to impose appropriate sanctions upon attorneys or parties that have violated subsection (b). (Id., § 128.7(c).)

Code Civ.

Proc. 128.7 provides a 21-day safe harbor provision whereby the offending party can avoid sanctions by withdrawing the improper pleading. (See *Galleria Plus, Inc. v. Hanmi Bank* (2009) 179 Cal.App.4th 535, 538.) In pertinent part section 128.7, subdivision (c)(1) reads as follows: "A motion for sanctions under this section shall be made separately from other motions or requests and shall describe the specific conduct alleged to violate subdivision (b). Notice of motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court unless, within 21 days after service of the motion, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected. . . ." Section 1010 provides that a notice of a motion "must state when . . . the motion will be made."

A formal

notice of motion is required to begin the 21-day period. (*Barnes v. Department of Corrections* (1999) 74 Cal.App.4th 126, 135-136.) An informal notice that substantially complied with the requirements of 128.7 is insufficient. (Id.) In most cases counsel should be expected to give informal notice to the other party, whether in person or by a telephone call or letter before formal notice is given. Therefore, such informal notice could not serve as a substitute for a formal noticed motion under the rule. (*Barnes v. Department of Corrections* (1999) 74 Cal.App.4th 126, 135.) When the document failed to specify when the motion would be made as required by CCP 1010, it is fatally defective. (*Galleria Plus v. Hanmi Bank*, 179 Cal.App.4th 535, 538.) When a party filed its motion for sanctions the same day it was served, it did not comply with section 128.7, subdivision (c)(1) and should be denied. (Id.)

Discussion

Procedural

Issues

Plaintiff

attests that he noticed this motion on March 18, 2026, by serving a copy of the motion on all defendants by email. (Hakimfar Decl., ¶ 9, Exhibit 3.)

Plaintiffs' declaration does not include a copy of the motion he attached to his email. Since Defendants do not raise any defects in the safe harbor period in opposition to Plaintiffs' motion, the Court will presume that Plaintiffs served an identical motion alongside the safe harbor letter.

Motion

for Sanctions

Plaintiffs

present no evidence that the Essex Defendants' demurrer to Plaintiffs' claim under the Los Angeles County Rent Stabilization Ordinance was unreasonable. Instead, Plaintiffs seem to argue that the burden is on Defendants to show that the action was reasonable. (Reply, pp. 2, 6-7.) Not so. It is the moving party's burden to show that the challenged conduct was unreasonable. (Peake v. Underwood (2014) 227 Cal.App.4th 428, 441 ["A court has broad discretion to impose sanctions if the moving party satisfies the elements of the sanctions statute"]; Kumar v. Ramsey (2021) 71 Cal.App.5th 1110, 1120 ["to obtain sanctions, the moving party must show the party's conduct in asserting the claim was objectively unreasonable"].) None of Plaintiffs' evidence shows that the Essex Defendants' actions were objectively unreasonable. Plaintiffs' evidence primarily consists of Plaintiffs' counsel's emails to the Essex Defendants containing Plaintiffs' demands for a stipulation correcting the error, and, importantly, "to confirmation [sic] that the County will remain as a defendant." (Hakimfar Decl., Exhibit 2, p. 4.) The Court dismissed the County for reasons completely unrelated to the superseded LA RSTPO statute. (See corrected March 13, 2026 Minute Order.) Plaintiffs evidence not only provides no basis for a finding that the Essex Defendants' conduct was objectively unreasonable, it also shows a reasonable basis for the Essex Defendants' counsel to refuse to stipulate to correct the error in the demurrer ruling.

Considering

the totality of the circumstances, the Court finds that Plaintiffs have not met their burden. Plaintiffs' Motion for Sanctions is DENIED.